

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-023
Amendments to Title 5 of the Chickasaw Nation Code
(Courts and Procedures)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has enacted rules and procedures for the District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend such rules and procedures to correct inconsistencies and further define protective orders.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5 of the Chickasaw Nation Code, all other sections and parts of Title 5 to remain the same (additions and case changes are shown in red, deletions are stricken through):

“SECTION 5-102.6

RULE 6: ACCELERATED PROCEDURE FOR SUMMARY JUDGMENTS AND CERTAIN DISMISSALS.

SECTION 5-103.12

DECISIONS.

A. All decisions and opinions of the Supreme Court shall be in accordance with the rules of the Court in Section 5-103.13 ~~213~~ hereof.

B. Each Justice shall record in writing his decision, or the fact of his not participating on each case decided by the Supreme Court as part of the permanent record.

C. The decision form or Court opinion shall be placed in the file of the case on appeal as an official document of the case.

SECTION 5-105.1

DEFINITIONS.

The definitions set out in Section 5-104.2 ~~5-212~~ of this Code shall apply in this Article E.

SECTION 5-202.38 5

DISTRICT COURT ADDRESS; TELEPHONE NUMBER.

SECTION 5-1201.7

NATIONWIDE VALIDITY OF ORDERS.

All orders issued pursuant to provisions for the protection from Domestic Abuse shall have validity throughout the jurisdiction of the Chickasaw Nation, the State of Oklahoma and the United States of America unless specifically modified or terminated by a Judge.

SECTION 5-1201.8

FOREIGN PROTECTIVE ORDERS.

A. It is the intent of the Legislature that all foreign protective orders shall have the rebuttable presumption of validity, even if the foreign protective order contains provisions which could not be contained in a protective order issued by a Chickasaw Nation court. The validity of a foreign protective order shall only be determined by a court of competent jurisdiction. Until a foreign protective order is declared invalid by a court of competent jurisdiction it shall be given full faith and credit by all peace officers and courts of the Chickasaw Nation.

B. A peace officer of the Chickasaw Nation shall be immune from liability for enforcing provisions of a foreign protective order.

SECTION 5-1201.9

**DUTIES OF POLICE OFFICER; EMERGENCY
TEMPORARY ORDER OF PROTECTION.**

A. A peace officer shall not discourage a victim of domestic abuse from pressing charges against the assailant of the victim.

B. A peace officer may arrest without a warrant a person anywhere, including a place of residence, if the peace officer has probable cause to believe the person within the preceding seventy-two (72) hours has committed an act of domestic abuse, although the assault did not take place in the presence of the peace officer. A peace officer may not arrest a person pursuant to this Section without first observing a recent physical injury to, or an impairment of the physical condition of, the alleged victim.

C. When the Court is not open for business, the victim of domestic abuse may request a petition for an emergency temporary order of protection. The peace officer making the preliminary investigation shall:

1. provide the victim with a petition for an emergency temporary order of protection and, if necessary, assist the victim in completing the petition form. The petition shall be in substantially the same form as provided by the Court Clerk;

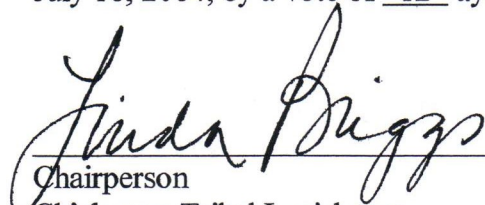
2. immediately notify, by telephone or otherwise, a Judge of the District Court of the request for an emergency temporary order of protection and describe the circumstances. The Judge shall inform the peace officer of the decision to approve or disapprove the emergency temporary order;

3. inform the victim whether the Judge has approved or disapproved the emergency temporary order. If an emergency temporary order has been approved, the officer shall provide the victim, or a responsible adult if the victim is a minor child or an incompetent person, with a copy of the petition and a written statement signed by the officer attesting that the Judge has approved the emergency temporary order of protection and notify the victim that the emergency temporary order shall be effective only until the close of business on the next day that the Court is open for business;

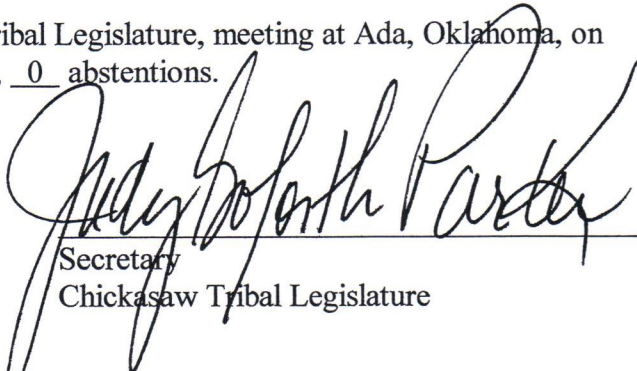
4. notify the person subject to the emergency temporary protection order of the issuance and conditions of the order. Notification pursuant to this Paragraph may be made personally by the officer or in writing. A copy of the petition and the statement of the officer attesting to the order of the Judge shall be made available to such person; and

5. File a copy of the petition and the statement of the officer with the Court immediately upon the opening of the Court on the next day it is open for business."

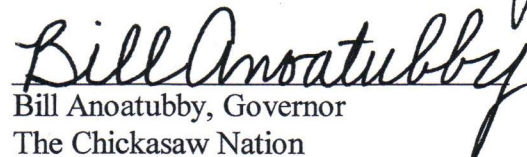
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 16, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 16 2004

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-023
Amendments to Title 5 of the Chickasaw Nation Code
(Courts and Procedures)

Explanation: This resolution amends rules and procedures for the Chickasaw Nation courts to correct inconsistencies and further define protective orders.

Requested By: Tim Colbert, Chairman
Court Development Committee

Presented By: Tim Colbert, Chairman
Court Development Committee